

24SMCV02415 24SMCV02415

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-09

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Case Number: 24SMCV02415 Hearing Date: July 9, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

June

3, 2026 -- continued to July 9, 2026

CASE NUMBER

25SMCV02415

APPLICATIONS

Verified

Applications to Be Admitted Pro Hac Vice

APPLICANTS

(1)

Michelle Barnett

(2)

Todd A. Wright

OPPOSING PARTY

none

APPLICATIONS

Michelle Barnett and Todd A.

Wright of Gordon Rees Scully Mansukhani, LLP (collectively, "Counsel") apply to be admitted pro hac vice as counsel for Defendant Treace Medical Concepts Inc. The applications are unopposed.

ANALYSIS

California Rules of Court rule 9.40

provides that an attorney in good standing in another jurisdiction may apply to appear as counsel pro hac vice in the State of California by filing a verified application together with proof of service by mail of a copy of the application and notice of hearing on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, with payment of the application fee, so long as that attorney is not a resident of the State of California, and is not regularly engaged in substantial business, professional, or other activities in the State of California. (Cal. Rules of Court, rule 9.40.)

The application must state: (1) the applicant's residence and office addresses; (2) the courts to which the applicant has been admitted to practice and the dates of admission; (3) that the applicant is a member of good standing in those courts; (4) that the applicant is not currently suspended or disbarred in any court; (5) the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).)

The Verified Applications provide the required information. Further, the Declarations of Brandon D. Saxon indicate the requisite application fees were paid.

The proofs of service indicate counsel for Plaintiff were served electronically and by mail and the State Bar was served by mail at its San Francisco Office in conformance with California Rules of Court, Rule 9.40(c), which provides: "A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period." (Cal. Rules of Court, rule 9.40(c)(1), emphasis added.)

CONCLUSION AND ORDER

Finding Counsels have satisfied all procedural and substantive requirements, the Court grants Counsels' unopposed verified applications to appear pro hac vice in this action.

Counsels shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:

July 9, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court